TIMOTHY DZORWA
versus
SHERIFF OF ZIMBABWE
and
MALVIN KAPESA N.O
and
JOB NYAKUDYA

HIGH COURT OF ZIMBABWE
FOROMA J
HARARE, 24 November 2025

L Madhuku, for the applicant
R T Hove, for the 3rd respondent
No appearance for the 1st and 2nd respondent

APPLICATION FOR A SPOILATION ODER

FOROMA J: When applicant filed this urgent Chamber application it cited first and second respondents only. It did not cite the third respondent, despite the fact that the substantive dispute concerning premises known as Stand TT 23204 Mungate Business Centre Domboshava was one before it and third respondent. On the first day of the hearing of the application Ms *Hove* for the third respondent appeared before me and applied for the joinder of the third respondent as an interested party which Mr *Madhuku* for the applicant did not keenly contest. I accordingly ordered that third respondent be joined as the third respondent and clearly the applicant's own papers (the founding affidavit) provided justification for such an order. In addition to making an order for the joinder of third respondent, I directed that the parties file a joint statement addressing the issue raised by the court namely whether in any of the court cases filed by the parties against each other concerning the disputed stand TT 23204 Mungate Business Centre Domboshava the identification of the disputed stand had been challenged by the applicant. This was because the applicant in the urgent chamber application under consideration appeared to suggest that the said stand though the subject of an order of a judgment order by

KATIYO J in case No HC 1811/24 had not adequately been identified for purposes of execution of the eviction order in the absence of a map of the business centre aforesaid. The said joint statement was supposed to be filed by not later than the 18th of November 2025 hearing date by which date the joined third respondent had to file any response to the urgent chamber application if advised to do so. The matter was then postponed to the 21st of November 2025 for continuation.

The record reflects that third respondent filed its opposing affidavit on the 17th of June 2025. It is appropriate to give a summary of the factual background to the dispute giving rise to the application by the applicants before going further with the judgment.

Factual background is succinctly given in KATIYO J's judgment in HC 1811/24 as follows:-

Background

"The applicant sought a declaratory order of the rights to his late father's estate over stand TT 23204 inclusive of Nyakudya Grill (Grinding) Mills. It is common cause that first respondent's late father was granted a lease by Goromonzi Rural District over certain commercial premise, measuring 2023 square meters comprising of a butchery, bottle store, grinding mill and general dealer. The respondent successfully evicted one Chirandu Mbanje who was leasing the property in question from the applicant in 2017. The first respondent in this matter then sought eviction of the appellant before the Magistrate's court under case number 17690/19 from the property in question, However the application was dismissed. The second respondent then proceeded to file an appeal against the order granted in case 17690/19 under CIVA 79/19 and the appeal was struck off the roll. The first respondent then applied for condonation for late noting of an appeal and extension of time under HC 4999/20, however the application was withdrawn as it was fatally defective. The first respondent then went on to seek a declaratory order concerning rights over the property in question which application was dismissed before this court".

It is important to note that in HC1811/24 the applicant was the first respondent herein and first respondent was the applicant herein with Goromonzi Rural District council and the Master of the High Court of Zimbabwe and second and third respondents respectively. It is also significant to note that the first respondent in HC 1811/24 was represented by Professor *Madhuku* who is also his legal representative *in casu*.

In HC 1811/24 applicant's position was that it objected *in limine* to the authority of applicant as an executor in a deceased estate to institute a court application through an agent appointed through a power of attorney. Applicant did not oppose the matter on the merits choosing instead to raise objections in *limine* which it considered were of such veracity they

would dispose of the matter without the need to go into the merits. When the objection in limine failed the first respondent who was seeking an ejectment order in a court application smooth sailed to victory and obtained a judgment order for applicants' ejectment from Mungate Business Centre stand TT 23204 aforesaid. It is also significant to note that the position that applicant persists with that stand namely TT 23204 does not physically exist was never raised before by the applicant.

When first respondent *in casu* sought to execute the order ejecting the applicant obtained in HC 1811/24 he instructed the Deputy Sheriff to:-

(i) Initially serve the court order and

(ii) The notice of ejectment on applicant at stand TT 23204 Mungate Business Centre aforesaid.

It was the notice of ejectment which provoked an urgent chamber application dealt with by CHIKOWERO J under HCH 2028 /25 who declined to deal with the application on an urgent basis as he did not agree that the matter was urgent. The learned judge instead removed the application from the roll of urgent applications after finding that the issue of a map as a pre requisite to ejectment from stand TT 23204 Mungate Business Centre was an abuse of court process and granted an order of costs on a punitive scale against the applicant. I also found applicant to have been engaging in a delaying ploy in filing the application under consideration. In this regard I quote from the CHIKOWERO J's cyclostyled judgment in case number HCH 2028/25-14. "This application is just but a desperate bid to delay the day of reckoning. It is an abuse of court process." On the 26th of February 2025 the legal practitioners for the second respondent herein instructed the sheriff to serve the court order in para 2 of this judgment on the first respondent at the following address Timothy Mutizura Dzorwa number stand TT 23204 termed ("Dzorwa General Dealer") Mungate Business Centre Domboshava Harare (4) Thus instructed the Sheriff effected service on 7 March 2025 indicating in the remarks section of the return of service:-

> "Remarks : Court order for the first respondent served on Aron Mandeya a tenant at the address for service who accepted service on behalf of the first respondent Timothy Dzorwa at 1550 hrs."

The applicant in the urgent chamber application *in casu* complains that the first and second respondents unlawfully amended the court order when they executed the order as instructed by the third respondent's legal practitioners. With respect this contention is mischievous. In its response to these allegations of unlawful amendment of the court order in its report filed on the 4th of June 2025 the first respondent categorically rejects/refutes this and says "the Sheriff refutes the allegations that they amended the court order to show the description "…..Dzorwa General dealer ." The service of the process was conducted under the guidance of the instructing Attorneys who indicated in their instruction letter that the stand is visibly labelled "Dzorwa General Dealer" rendering the use of the map unnecessary." With this explanation it is clear (and we did not find anything to the contrary) that the first respondent falsely accuses first respondent of not following *mandate* and that by accusing the Deputy Sheriff of unlawfully amending the court order applicant is being mischievous, and infact malicious. I could not but agree with third respondent when he remarked in his opposing affidavit as follows:-

> "(7). The procedure that the appellant has adopted is wrong. He cannot purport to be despoiled when the ejectment was done in terms of a Court Order."

Clearly the applicant is distorting facts in order to attack or discredit due process.

Applicant seeks to impugn third respondent's execution process yet in reality he has always found it acceptable to regard the same premises in respect of which he cries foul to be precisely stand TT 23204 Mungate Business Center in the two previous applications namely for the ejectment of Chirandu Mbanje in the Magistrate court and (2) for a declaratur (the latter) which was unsuccessful. In considering the current urgent chamber application as a spoliation order or (a stay of execution). I was guided by a rule of a natural justice and fairness namely "what is good for the goose is good for the gander." If applicant was convinced prior to filing the current application for a spoliation order that he could obtain a declaratur in respect of a piece of land not depicted on a Business Centre map he should not be allowed to deny the existence of the said business premises purely because the tables are turned against him.

Applicant's argument is tantamount to this - that CHIKOWERO J issued an order *brutum fulmen* that is to say that the Court in granting the order for applicant's eviction committed an

error. In my view any such error cannot be remedied by way of an application for a spoliation order after first respondent successfully ejected the applicant following due process. It is incorrect that first respondent unlawfully amended the court order by KATIYO J as alleged by applicant. Given that the applicant did not oppose the third respondent's counter application for ejectment and declaratur in HC 1811/24 on the merits I am persuaded that third respondent's instructions to eject applicant were not unlawful nor were they irregular as to constitute spoliation. In his opposition third respondent in paragraph 11.3 of its opposing affidavit avers as follows:

> "It is important to highlight that when I was still in occupation of stand TT 23204 I operated as Nyakudya Grinding mill." When the applicant gained occupation of stand TT 23204 in 2017. He started using the premises for another business and then termed them as Stand TT 23304 in 2017. He started using the premises for business and the termed stand TT/23304 as "Dzorwa General Dealer"
>
> > "114 When I instructed the first respondent to eject the applicant I directed them to stand TT 23204 Dzowa General dealer as the banner which the applicant had placed over stand TT 23204 to which l am the lawful lessee as ruled by the court. It is therefore in correct to allege that the first respondent unilaterally and unlawfully changed the court order as applicant purported to argue."

The third respondent's foregoing position was not disputed or explained away by the applicant I found it to be a compelling argument which found support for the order for the ejectment of applicant from stand TT 23204 Mungate Business centre by KATIYO J.

I did not consider that applicant had made out a case for a spoliation order in the circumstances but believed and found that applicant with the support of counsel was unfortunately persisting with the abuse of court process as found against it by CHIKOWERO J. In particular I did not regard first respondent's conduct in the performance of its official duties could by any stretch of imagination or straining of the language be described as spoliatory or deserving any censure.

I accordingly dismissed the urgent chamber application with costs on a punitive scale for the foregoing reasons.

FOROMA J…….

Lovemore Madhuku lawyers, Applicant's Legal Practitioners
Hove and Associates, Third Respondent's Legal Practitioners